

HOUSE No. 1042

The Commonwealth of Massachusetts

PRESENTED BY:

Aaron L. Saunders

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the Quabbin Watershed and regional equity.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Aaron L. Saunders</i>	<i>7th Hampden</i>	<i>1/16/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>3/12/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>3/12/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>6/4/2025</i>

HOUSE No. 1042

By Representative Saunders of Belchertown, a petition (accompanied by bill, House, No. 1042) of Aaron L. Saunders for legislation to establish the the Quabbin host community trust fund. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the Quabbin Watershed and regional equity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 10 of the General Laws is hereby amended by inserting after
2 section 35SSS the following section:-

3 Section 35TTT. (a) There shall be established and set up on the books of the
4 commonwealth a separate fund to be known as the Quabbin Host Community Trust Fund to be
5 used, without further appropriation, by the secretary of energy and environmental affairs for the
6 municipal service, public safety, and development needs of Quabbin Reservoir watershed
7 communities, as defined by the department of conservation and recreation, including, but not
8 limited to, lands authorized to be taken under chapter 321 of the acts of 1927 or any successor
9 statute granting the taking of land for a similar purpose. All funds assessed and collected under
10 section 21 of chapter 92A½ shall be deposited into the fund. Any balance in the fund at the end
11 of the fiscal year shall not revert to the general fund but shall remain available for expenditure in
12 subsequent fiscal years. No expenditure made from the fund shall cause the fund to become

deficient at any point during a fiscal year. Annually, not later than October 1, the secretary shall file with the clerks of the senate and house of representatives and the house and senate committees on ways and means a report of the fund's activities, including but not limited to expenditures made and income received by the fund.

(b) Annually the Massachusetts Water Resources Authority shall deposit \$35,000,000 into the Quabbin Host Community Development Trust Fund, indexed to inflation. No less than 90% of funds deposited into the fund shall be expended in each fiscal year. No less than 70 per cent of expenditures by the trust in each fiscal year shall be made to Quabbin Reservoir watershed communities for municipal operations and capital improvements, including debt service. No more than 25 per cent of expenditures by the trust in each fiscal year shall be made to non-profit and cultural organizations directly serving the health, welfare, safety, and transit needs of Quabbin Reservoir watershed communities as well as the Connecticut River Basin communities and Chicopee River Basin communities. No more than 5 per cent of expenditures by the trust in each fiscal year shall be to Quabbin Reservoir watershed communities for funding projects pursuant to section 26 of chapter 165, including costs for the operations and management of conduits, pipes, and hydrants constructed under the section.

(c) The secretary, in consultation with the several Select Boards of the Quabbin Reservoir watershed communities, shall establish rules and regulations for the administration of the fund.

SECTION 2. The third paragraph of section 5G of chapter 59 of the General Laws is hereby amended by striking out the second and third sentences and inserting in place thereof the following sentences:- Said amounts to be held in trust as payments in lieu of taxes shall be made on the total acreage in question that is held by each community; provided however, that the sum

of said payments shall not be less than \$50,000 annually, and shall be valued in accordance with the provisions of sections 13 to 17, inclusive, of chapter 58. In no event shall any city or town receive an amount less than the payment received from the metropolitan district commission in the prior fiscal year.

SECTION 3. Subsection (b) of section 3 of chapter 372 of the acts of 1984 is hereby amended by striking out the words “one member of the board of directors who is a resident of a Connecticut river basin community who represents water resources protection interests” and inserting in place thereof the following words:- three members of the board of directors, one of whom is a resident of a Quabbin Reservoir watershed community, as defined pursuant to section 35TTT of chapter 10 of the General Laws, in Franklin county, one of whom is a resident of a Quabbin Reservoir watershed community in Hampshire county and one of whom is a resident of a Quabbin Reservoir watershed community in Worcester county, each of whom shall represent land and water resources protection and host community interests.

SECTION 4. Said subsection (b) of section 3 of chapter 372 of the acts of 1984 is hereby further amended by striking out the words “a Connecticut river basin community shall include any city or town in the commonwealth lying in whole or in part in the drainage area of the Connecticut river or its tributaries” and inserting in place thereof the following words:- a Quabbin reservoir watershed community as defined pursuant to section 35TTT of chapter 10 of the General Laws.

SECTION 5. The first sentence of subsection (d) of said section 3 of said chapter 372 is hereby amended by inserting after the word “reappointment” the following words:- ; provided,

56 however, that no member of the board of directors shall serve for more than 12 years, except the
57 secretary of the executive office of environmental affairs, serving ex officio.

58 SECTION 6. Notwithstanding any general or special law to the contrary, no later than
59 December 31, 2025⁶ the Massachusetts Water Resources Authority shall complete a Water
60 System Expansion Evaluation of the Westfield River Basin communities, Chicopee River Basin
61 communities, Connecticut River Basin communities, and Millers River Basin communities in a
62 manner consistent with the Evaluation of Ipswich River Basin completed by the Authority in
63 October 2022; provided, however, that notwithstanding the provisions of Sections 8 through 8D,
64 inclusive, of chapter 21 of the General Laws, the Water Resources Commission shall not approve
65 any interbasin transfer of water from the Quabbin Reservoir until said evaluation has been
66 completed. The evaluation shall be made available on the Massachusetts Water Resources
67 Authority's website and a copy shall be filed with the clerks of the house and senate and the
68 house and senate chairs of the committee on environment and natural resources.

69 SECTION 7. Sections 1 of this act shall take effect on January 1, 2026.